

25STCV14363 25STCV14363

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Case Number: 25STCV14363 Hearing Date: September 16, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:14 PM on September 15, 2026.

Rule of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No later than 4:00 p.m. on September 15, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that he was terminated for taking an indefinite leave of absence for this disability.

Plaintiff moves to quash or modify Defendant's subpoenas for production of employment records and medical records.

TENTATIVE RULING

Plaintiff Diego Benites's motion to quash Defendant's subpoenas for production of employment records and medical records is DENIED. Plaintiff's motion to modify the subpoenas is GRANTED IN PART as to the temporal scope only, as set forth below.

No sanctions were requested.

ANALYSIS

Motion To Quash Deposition Subpoenas – Medical Records and Employment Records

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Plaintiff moves for an order quashing or, in the alternative modifying, the business record subpoenas issued by Defendant as follows: (1) Deposition Subpoena to Brain Health USA Center, Felix Ahmedov, NP, seeking all medical records, billing records, insurance records, and sign-in sheets from September 21, 2018, to present; (2) Deposition Subpoena to Ehab Yacoub, M.D., Inc. c/o Joseph S. Yung & Co., seeking all medical records, billing records, insurance records, and sign-in sheets from September 21, 2018 to present; (3) Deposition Subpoena to Jonah Medical Group, Inc., Jun Chung, M.D. c/o Wendy Choi, seeking all medical records, billing records, insurance records, and sign-in sheets from September 21, 2018 to present; and (4) Deposition Subpoena to Loandepot.com, LLC c/o Registered Agent Solutions, Inc., seeking all employment records from March 5, 2021 to present.

(a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc., § 1987.1(a).)

There is no meet and confer requirement set forth in Civ. Proc. Code, § 1987.1.

However, case law has imposed the “good cause” requirement for subpoena document requests propounded upon non-parties, that is, the propounding party must articulate specific facts relating to each category of materials sought to justify production:

In the course of the litigation, Thiem served a subpoena under section 2020 on Calcor's custodian of records demanding Calcor, a nonparty and Thiem's competitor, to, in effect, produce all materials in its possession relating to gun mounts, going back nearly 10 years. The subpoena fails to identify any specific document but merely describes broad categories of documents and other materials.

(Calcor Space Facility v. Superior Court (1997) 53 Cal.App.4th 216, 219.)

Although the scope of civil discovery is broad, it is not limitless. . . . [Former] Section 2031, subdivision (l), which applies to document production requests served on a party, requires a party seeking to compel such production to “set forth specific facts showing good cause justifying the discovery sought by the inspection demand” (Italics in original.) Section 2020, the statute at issue, contains no such specific requirement. However, since both sections are part of a single statutory scheme, and since it is unlikely the Legislature intended to place greater burdens on a nonparty than on a party to the litigation, we read a similar requirement into the latter section.

(Calcor Space Facility, *supra*, 53 Cal.App.4th at 223-24.)

Even were we to ignore that the statements purporting to justify an order compelling Calcor to produce its documents and other materials are unverified, they still fail. There is an absence of specific facts relating to each category of materials sought to be produced; the justifications offered for the production are mere generalities. The very vice of the subpoena's promiscuity is well illustrated by Thiem's inability to provide focused, fact-specific justifications for its demands. The noted generality of the subpoena's definitions, instructions and categories which merely add up to a demand Calcor produce everything in its possession having anything to do with gun mounts, precludes Thiem from demonstrating any particular item or category in fact constitutes or contains matter which "is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (§ 2017, subd. (a).) The purported justification for imposing this great burden on Calcor necessarily suffers from the same generality as the subpoena itself.

Although appellate courts have frequently stated "fishing expeditions" are permissible in discovery, there is a limit. As noted in *Gonzalez v. Superior Court* (1995) 33 Cal. App. 4th 1539 [39 Cal. Rptr. 2d 896], "These rules are applied liberally in favor of discovery (*Colonial Life & Accident Ins. Co. v. Superior Court* (1982) 31 Cal. 3d 785, 790), and (contrary to popular belief), fishing expeditions are permissible in some cases." (Id. at p. 1546.) However, early in the development of our discovery law our Supreme Court recognized the limits on such "fishing expeditions." In *Greyhound Corp. v. Superior Court* (1961) 56 Cal. 2d 355 [15 Cal. Rptr. 90, 364 P.2d 266], the seminal case in California civil discovery, the court gave examples of improper "fishing:" "The method of 'fishing' may be, in a particular case, entirely improper (i.e., insufficient identification of the requested information to acquaint the other party with the nature of information desired, attempt to place the burden and cost of supplying information equally available to both solely upon the adversary, placing more burden upon the adversary than the value of the information warrants, etc.). Such improper methods of 'fishing' may be (and should be) controlled by the trial court under the powers granted to it by the statute." (Id. at pp. 384-385.) The concerns for avoiding undue burdens on the "adversary" in the litigation expressed in *Greyhound* apply with even more weight to a nonparty.

Had the *Greyhound* court been able to anticipate the tremendous burdens promiscuous discovery has placed on litigants and nonparties alike, it might well have taken a stronger stand against such "fishing." *Greyhound's* optimism in noting the then new discovery system would be "simple, convenient and inexpensive," would "expedite litigation," and "expedite and facilitate both preparation and trial," has certainly proven to have been considerably off the mark. (56 Cal. 2d at p. 376.)

The issues in this litigation may essentially be reduced to the question whether Thiem's work met Delco's specifications. This may be determined without any reference to the contract between Delco and Calcor or the specifications which are part of that contract. Another issue which may exist is whether Delco may recover the excess of the cost of the gun mounts procured from Calcor as damages for "cover" under California Uniform Commercial Code section 2712. (See *Gerwin v. Southeastern Cal. Assn. of Seventh Day Adventists* (1971) 14 Cal. App. 3d 209, 217-218 [92 Cal. Rptr. 111].) If so, differences in specifications issued to Thiem and to Calcor may be relevant. However, discovery by Thiem from Delco should normally provide it with this evidence. As between parties to litigation and nonparties, the burden of discovery should be placed on the latter only if the former do not possess the material sought to be discovered. An exception to this may exist where a showing is made the material obtained from the party is unreliable and may be subject to impeachment by material in possession of the nonparty. Thiem has not even attempted to demonstrate why it cannot obtain the needed materials from Delco or why such materials might be unreliable.

(Calcor Space Facility, *supra*, 53 Cal.App.4th at 224-25 [bold emphasis and underlining added].)

The subpoenas at issue are attached as Exhibits 1 through 4 to the Declaration of Garen R. Nadir, and seek the following documents:

¿ Brain Health USA Center:

1. All DOCUMENTS referring or RELATING TO every appointment, visit, consultation, evaluation, meeting, COMMUNICATIONS, examination, treatment session, therapy session between BRAIN HEALTH USA CENTER and/or FELIX AHMEDOV, NP and/or any medical doctor, nurse, or other healthcare professional associated therewith and PLAINTIFF, including, but not limited to: charts, diaries, notes, logs, histories, examination notes, assessments, patient complaints, treatment sought, diagnoses, prognoses, referrals, letters, work release notes, charge slips, sign-in sheets, memoranda, prescriptions, recommended treatment, observations and/or notes from memoranda concerning reports of

psychological or emotional distress and/or depression, anxiety, and adjustment disorder, of PLAINTIFF from September 21, 2018 to present.

2. All documents referring or RELATING TO any medical bills, invoices, insurance payments and the like between BRAIN HEALTH USA CENTER and/or FELIX AHMEDOV, NP and/or any medical doctor, nurse, or other healthcare professional associated therewith and PLAINTIFF from September 21, 2018 to present.

Privacy is an inalienable right under the California Constitution. (Citation omitted.) It is well established that the right to privacy extends to medical records (citation omitted), which may contain “matters of great sensitivity going to the core of the concerns for the privacy of information about an individual.” (Citation omitted.) The privacy interest in psychiatric records is particularly strong and, in some respects, entitled to more robust protection than other types of medical records. (Citations omitted.)

But the privacy right is not absolute and at times must yield to other important interests. (Citations omitted.)

(Grafilo v. Soorani (2019) 41 Cal.App.5th 497, 507.)

The California Supreme Court has held that a compelling interest or compelling need is not always required in order to discover private information—the Court must consider the factors articulated in Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1 to determine the seriousness of the privacy invasion and the strength of the countervailing interest required to overcome that invasion. (Williams v. Superior Court (2017) 3 Cal.5th 531.)

In ruling upon a privacy objection in the context of discovery, the party asserting a privacy right must establish a legally protected privacy interest. (Williams, supra, 3 Cal.5th at 552.) The party asserting a privacy right must also establish an objectively reasonable expectation of privacy in the given circumstances. (Id.) Further, the party asserting a privacy right must establish a threatened intrusion that is serious. (Id.) The Court need not proceed to the fourth step of balancing competing interests if all three of the above are not satisfied. (Id. at 555.) If the Court reaches the fourth step, the Court must balance these competing considerations: The party seeking information may raise whatever legitimate and important countervailing interests disclosure serves. (Id. at 552.) The party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. (Id.) Courts may not require the party seeking discovery to demonstrate a “compelling state interest” or “compelling need[1]” simply because discovery of any facially private information is sought. (Id. at 556-57.)

Although a plaintiff waives privacy as to information which relates to any physical or mental condition put in issue by bringing the lawsuit, the plaintiff retains the privacy interest in unrelated past medical or psychotherapeutic treatment; a disclosure of the entire lifetime of medical history is unwarranted. (Britt v. Superior Court (1978) 20 Cal.3d 844, 865.)

First, the subpoenas demand “[t]he complete medical record” which is defined to “include[], but [not be] limited to” the six more specific categories in the subpoena. This expansive “including but not limited to language” is entirely inconsistent with the relevant and material standard; a subpoena must itemize, at least by category, the materials to be produced. The subpoenas also demand in category six “all other data, information or record which would reveal all medical care provided to the patient.” This sort of “catch-all” category is also unjustified; it is tantamount to a request for the patients’ entire medical file during the operative time period. As we have said, a time limitation alone will rarely suffice to appropriately cabin a subpoena’s demand for private information of the type sought in this case.

(Cross v. Superior Court (2017) 11 Cal.App.5th 305, 330.)

Here, Plaintiff alleges that he began working for Defendant on March 2021 and continued working until he was discharged on or about June 1, 2023. (Complaint, ¶ 14.) Defendant argues that when a plaintiff affirmatively places a mental condition in controversy by alleging mental and emotional injury, the defendant is entitled to investigate the existence, extent, and

alternative sources of the claimed injury. (Vinson v. Sup. Ct. (1987) 43 Cal.3d 833, 840-842 ("Vinson").) This constitutes good cause for discovering information as to sources of Plaintiff's claimed emotional distress. (See, e.g., Complaint, ¶¶ 39, 46, 53, 59, Prayer, ¶ c.) However, in balancing Defendant's need for discovery of such information against Plaintiff's privacy interest in his medical records, the Court only finds good cause for discovering alternative sources of emotional distress from the present dating back to one year prior to the date Plaintiff began working for Defendant in March 2021, i.e., back to March 2020. As Plaintiff notes in the Reply, if there are indications in the records that Plaintiff was treated for conditions which date back further, Defendant may propound discovery narrowly tailored to that specific condition.

As for payment information, this is relevant to the extent Plaintiff seeks to recover for out-of-pocket costs and expenses incurred for treatment.

Plaintiff has not demonstrated that his privacy interest justifies other limitations. Indeed, there may be some physical ailments which contributed to emotional distress that were unrelated to the alleged work-related emotional distress.

As such the motion to quash is DENIED. However, the motion to modify the subpoenas is GRANTED IN PART as to the temporal scope only, as specified above.

∫ Ehab Yacoub, M.D., Inc.

1. All DOCUMENTS referring or RELATING TO every appointment, visit, consultation, evaluation, meeting, COMMUNICATIONS, examination, treatment session, therapy session between EHAB YACOUUB M.D., INC. and/or any medical doctor, nurse, or other healthcare professional associated therewith and PLAINTIFF, including, but not limited to: charts, diaries, notes, logs, histories, examination notes, assessments, patient complaints, treatment sought, diagnoses, prognoses, referrals, letters, work release notes, charge slips, sign-in sheets, memoranda, prescriptions, recommended treatment, observations and/or notes from memoranda concerning reports of psychological or emotional distress and/or depression, anxiety, and adjustment disorder, of PLAINTIFF from September 21, 2018 to present.

2. All documents referring or RELATING TO any medical bills, invoices, insurance payments and the like between EHAB YACOUUB M.D., INC. and/or any medical doctor, nurse, or other healthcare professional associated therewith and PLAINTIFF from September 21, 2018 to present.

For the reasons discussed above, the motion to quash is DENIED and the motion to modify the subpoenas is GRANTED IN PART as to the temporal scope only, as specified above.

∫ Jonah Medical Group, Inc., Jun Chung, M.D.

1. All DOCUMENTS referring or RELATING TO every appointment, visit, consultation, evaluation, meeting, COMMUNICATIONS, examination, treatment session, therapy session between JONAH MEDICAL GROUP, INC. and/or JUN CHUNG, M.D. and/or any medical doctor, nurse, or other healthcare professional diaries, notes, logs, histories, examination notes, assessments, patient complaints, treatment sought, diagnoses, prognoses, referrals, letters, work release notes, charge slips, sign-in sheets, memoranda, prescriptions, recommended treatment, observations and/or notes from memoranda concerning reports of psychological or emotional distress and/or depression, anxiety, and adjustment disorder, of PLAINTIFF from September 21, 2018 to present.

2. All documents referring or RELATING TO any medical bills, invoices, insurance payments and the like between JONAH MEDICAL GROUP, INC. and/or JUN CHUNG, M.D. and/or any medical doctor, nurse, or other healthcare professional associated therewith and PLAINTIFF from September 21, 2018 to present.

As to this subpoena, in the Opposition, Defendant agrees that this period should be limited to July 1, 2022 to the present, and an amended subpoena was served in this regard. As such, to the extent the motion to quash is not moot as to this subpoena, the motion to limit is GRANTED IN PART. The period of responsive documents shall be limited to July 1, 2022 to the present.

¿ Loandepot.com, LLC

All employment records concerning DIEGO MOISES BENITES, including but not limited to: the personnel file; job applications, performance reviews or evaluations; disciplinary records; records reflecting separation of employment whether by resignation, termination, or otherwise; job duties and descriptions for all positions performed; records seeking reimbursement; if applicable, payroll and/or salary and/or wage records; timesheet or time records reflecting dates and hours worked; workers' compensation claims, if any; requests for time off and/or leaves of absence; requests for accommodations or to honor work restrictions; employee benefit records; charges or complaints whether state, federal, administrative or otherwise filed by DIEGO MOISES BENITES from March 5, 2021 to present.

The constitutional right of privacy protects documents and communications in one's employment files. (Board of Trustees v. Superior Court of Santa Clara County (1981) 119 Cal.App.3d 516, 528, overruled in part on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.) Moreover, although there may be an implicit partial waiver of the right of privacy in bringing suit, "the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. (Citations omitted[.]) An implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit." (Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1014 [italics in original, bold emphasis added].)

Here, Plaintiff alleges he was terminated on June 2, 2023. (Complaint ¶ 14.) The temporal scope is thus properly limited to June 2, 2023 to the present date.

As for good cause, Defendant argues that the documents sought are relevant to Plaintiff's claim for wage loss and continuing-disability damages, as the documents would showing the work he actually performed, any work restrictions he asserted, whether he requested accommodation or leave, and whether he remained able to carry out the essential functions of subsequent employment.

This argument is persuasive, as Plaintiff alleges that he continues to suffer other economic loss. (Complaint, ¶¶ 45, 52, 58.) Defendant is entitled to why and what type of economic loss Plaintiff claims even though he found a new job, and whether such loss is attributable to his performance at his new job.

The motion to quash is DENIED. The motion to quash is DENIED and the motion to modify the subpoenas is GRANTED IN PART as to the temporal scope only, as specified above.

No sanctions were requested.

[1] In this regard, Plaintiff's repeated argument that Defendants must show a compelling need for the discovery is based on authority which has been overruled.